



SPONSOR: Rep. Harris & Sen. Poore & Sen. Hoffner

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 257

AN ACT TO AMEND TITLES 11 AND 29 OF THE DELAWARE CODE RELATING TO STATE PENSIONS AND CHILD SEXUAL OFFENSES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Part II, Title 11 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 4108. Child Abuse Pension Attachment.

4 (a) When a person receives or will be entitled to receive a pension under Chapter 88 of Title 11 or Chapter 53, 55,
5 55A, or 56 of Title 29, and is convicted of a qualifying offense, the Court may, in its discretion, direct that the pension is
6 assignable to the victim of the offense as set forth in this section upon a finding by a preponderance of the evidence that the
7 offense was committed in connection with or was aided by the position of the offender that entitled the offender to the
8 pension. "Qualifying offense" for the purposes of this section means a sexual offense as defined in § 761(i) of this title
9 committed against a child.

10 (b) The Court may assign the pension as follows:

11 (1) Where the qualifying offense is a misdemeanor, assign up to 25% of each pension distribution up to
12 the limit of the total restitution owed, until satisfied.

13 (2) Where the qualifying offense is a felony, assign up to 50% of each pension distribution up to the limit
14 of the total restitution owed, until satisfied.

15 (c) The Board of Pension Trustees must make regulations to implement court orders under this section.

16 Section 2. Amend Part V, Title 11 of the Delaware Code by making deletions as shown by strike through and
17 insertions as shown by underline as follows:

18 § 8803. Garnishment and assignment of benefits prohibited.

19 Except for orders of the Delaware Family Court for a sum certain payable on a periodic ~~basis~~, basis and under §
20 4108 of Title 11, the benefits provided by this chapter shall not be subject to attachment or execution and shall be payable
21 only to the beneficiary designated and shall not be subject to assignment or transfer.

22 Section 3. Amend Chapter 51, Title 29 of the Delaware Code by making deletions as shown by strike through and
23 insertions as shown by underline as follows:

24 § 5127. Denial of benefits to employees convicted of certain crimes.

25 (a) A person who would otherwise be eligible to receive a service or disability pension as provided in Chapter 88
26 of Title 11 or Chapter 53, 55, 55A, or 56 of Title 29 is not entitled or permitted to receive the state's contribution to the
27 pension, but is entitled or permitted to receive the person's own contribution to the pension, following the Executive
28 Secretary's receipt of a written notification from the person's employer (or former employer) certifying all of the following:

29 (1) The person has been convicted of a sexual offense as defined in § 761(i) of this title committed against a
30 child or equivalent offense in another state.

31 (2) The conviction was based on acts committed in connection with or aided by the offender's position.

32 (3) The conviction occurred after [the effective date of this Act].

33 (b) The survivor of any person denied a pension under this section is entitled to receive the survivor benefits
34 described in this chapter following the death of such person, provided the person has not received the withdrawal benefit
35 provided by § 5530 of this title.

36 Section 4. Amend § 5304, Title 29 of the Delaware Code by making deletions as shown by strike through and
37 insertions as shown by underline as follows:

38 § 5304. Attachment and assignment of benefits.

39 Except for orders of the Delaware Family Court for a sum certain payable on a periodic ~~basis~~, basis and under §
40 4108 of Title 11, the benefits provided by this chapter shall not be subject to attachment or execution and shall be payable
41 only to the beneficiary designated and shall not be subject to assignment or transfer.

42 Section 5. Amend § 5503, Chapter 55, Title 29 of the Delaware Code by making deletions as shown by strike
43 through and insertions as shown by underline as follows:

44 § 5503. Attachment and assignment of benefits.

45 Except for orders of the Delaware Family Court for a sum certain payable on a periodic ~~basis~~ basis, under § 4108
46 of Title 11, or for benefits payable under § 5546 of this title, the benefits provided by this chapter shall not be subject to
47 attachment or execution and shall be payable only to the beneficiary designated and shall not be subject to assignment or
48 transfer.

49 Section 6. Amend § 5553, Chapter 55A, Title 29 of the Delaware Code by making deletions as shown by strike
50 through and insertions as shown by underline as follows:

51 § 5553. Attachment and assignment of benefits.

52 Except for orders of the Delaware Family Court for a sum certain payable on a periodic ~~basis~~, basis and under §
53 4108 of Title 11, the benefits provided by this chapter shall not be subject to attachment or execution and shall be payable
54 only to the beneficiary designated and shall not be subject to assignment or transfer.

55 Section 7. Amend § 5620, Chapter 56, Title 29 of the Delaware Code by making deletions a shown by strike
56 through and insertions as shown by underline as follows:

57 § 5620. Attachment and assign of benefits.

58 Except for orders of the Delaware Family Court for a sum certain payable on a periodic ~~basis~~, basis and under §
59 4108 of Title 11, the benefits provided by this chapter shall not be subject to attachment or execution and shall be payable
60 only to the beneficiary designated and shall not be subject to assignment or transfer.

SYNOPSIS

This Act provides for forfeiture of the state's contribution to a state, judicial, county, or municipal employee's pension if that employee is convicted of a sexual offense against a child and the offense was in connection with or aided by the employee's position. It further provides that if a state, judicial, county, or municipal employee is convicted of a sexual offense against a child and the Court finds the offense was committed in connection with or aided by the employee's position, the Court may assign portions of the employee's pension to the victim of the crime for restitution.